

The Claremont City Council held a meeting on Wednesday, February 26, 2020, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Abigail Kier
At-Large Councilor Erica Sweetser
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois

Absent:

Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager

AGENDA CHANGES

None

MAYOR’S NOTES

- There will be a special meeting of the Council on March 5th to discuss the Compensation Study
- March 10th School District elections – very important that people vote

CITY MANAGER’S REPORT

- Emergency CDBG Grant has been approved for 147 Main Street.
- Leak Detection Grant – Estimate 25 miles of our system will be analyzed this year. NHDES provides approximately \$5,000 of leak detection services.
- ACERT Grant – Police Department will use the VOCA (Victim of Crimes Act) grant of approximately \$222,000 to develop an Adverse Childhood Effects Response Team (ACERT) in the Greater Claremont Area.

- Rail Trail Update – the City will be receiving \$23,150 from the Regional Trails Program (RTP) Grant for beautification along the Rail Trail in front of 287-313 Washington Street.
 - Still looking at option to move the Trail behind the businesses at 287-313 Washington Street
- Sober House – Feb 18th, the County Delegation approved the purchase of 19 Sullivan Street to create a County-run sober living facility. A PILOT (Payment in Lieu of Taxes) agreement is being discussed.
- C&D Facility Update – Zoning Board of Adjustment meeting will be held Monday, March 2nd at 7 p.m., to discuss one special exception request and three variance requests for a Construction & Demolition Facility on Industrial Boulevard.
- Draper Corner – traffic signal has been temporarily repaired; a permanent fix will be done in the spring
- Public Works – roads will be posted beginning in March
- Parking Enforcement Officer starts Friday. Will send out eblast and notifications to the community.

Mr. Koloski asked if the Police Department grant had come to Council prior to today. Mr. Morris said no, but it will come to Council for acceptance of the grant. Mr. Koloski would like as much information as possible before having to make approval of the grant. He referenced SAFER (Staffing for Adequate Fire and Emergency Response) grants. Mr. Morris said this is different than a SAFER grant.

Ms. Matteau talked about the Planning and Zoning Boards being quasi-official and that board members can't prejudice items to come before them. She asked if there was any chance, through the appeal process, that an item would end up in front of the Council. Mr. Morris said that an appeal would go to Court.

Nancy Merrill, Planning and Development Director, said if it is not heard by the Planning Board within 60 days of when it is received, it could potentially come to Council, but typically if that is going to happen her office gets a waiver from the applicant on the timeframe. She would not expect it to show up at the Council.

Mr. Koloski asked for an update on Police Department staffing and the Comfort Dog. Mr. Morris can have Police Chief Chase come to a meeting to discuss this.

APPOINTMENT TO BOARDS AND COMMITTEES

Council Appointment to Claremont Planning Board

Mr. O'Hearne called a point of order that the Council had not accepted Mr. Damren's resignation from the Claremont Planning Board.

A motion was made by Ms. Matteau and seconded by Mr. O'Hearne to accept Allen Damren's resignation from the Claremont Planning Board.

Voice vote: motion carried 6-2, with Ms. Kier and Mr. Koloski voting no.

A motion was made by Mr. Damren and seconded by Ms. Kier to appoint James Contois to seat 9 City Councilor (ex-officio) of the Claremont Planning Board.

Mr. Koloski expressed concern about the appointment because Mr. Contois has been very vocal about projects, including the construction and demolition project and in that seat, he has to remain neutral until the facts are presented to the board. Ms. Matteau shares Mr. Koloski's concern.

Mr. Contois said that the construction and demolition issue started before he joined the Council. He will continue to advocate for health and public welfare. He knows he would have to recuse himself from certain discussions.

Other Councilors expressed concern about Mr. Contois' ability to remain neutral.

Voice vote: motion failed 0-8.

Mr. Contois said he understands the positions people are taking. He said it is a disservice to the citizens to not allow him to serve because of his concerns about public health and welfare.

Ms. Matteau said she would be willing to sit on the Claremont Planning Board.

A motion was made by Ms. Kier and seconded by Ms. Sweetser to appoint Debora Matteau to seat 9 City Councilor (ex-officio) of the Claremont Planning Board.

Voice vote: motion carried 7-1 with Mr. Contois voting no.

Mayor Lovett said Mr. Contois has expressed a desire to serve on the Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC) and that will be discussed at a future meeting.

Mr. Koloski said for a UVLSRPC appointment, the Planning Board nominates the individual and then the nomination is forwarded to the Council.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Legislative Updates

Mayor Lovett reported:

- HB1539 relative to the relocation of children with elevated lead levels, was voted 11-7 Ought to Pass. The full House will vote on the bill on March 5. This has been briefed to the Claremont Lead Action Team and unless Council decides otherwise, she will forward her testimony to the County Delegation prior to the House vote.
- SB599 relative to testing for lead in water in schools and child care facilities. The bill will be heard by the Senate Health and human Services Committee on March 3, 2:15 p.m. This has been briefed to the Claremont Lead Action Team and unless Council decides otherwise, she will testify in support of this bill.

Change in Legal Office Assistant Position

Mr. Morris said he had no updates at this time.

NEW BUSINESS

Welfare Update (City Manager)

Suzanne Carr, Welfare Director, said the housing crisis has worsened since 2016. The vacancy rate is virtually zero in Sullivan County. Shelters are at or over capacity around the state, and have been for months. Half of the family shelter space in Claremont is unusable due to lack of sprinklers. Homelessness is expensive. Local welfare is an unfunded mandate. Housing market reports \$1,022 median rent for a 2-bedroom apartment in Sullivan County, statewide over \$1,300. She said HB1247 relative to notice of rent increases in certain residential rental property, was introduced last week. It states that if there is a rent increase of over 5%, the landlord has to give a 60-day notice, and if over 8%, they have to give a 90-day notice. Since July, her office has seen 35-36 families that were homeless or at risk of being homeless. As of today, 92% of the Welfare Rent line item has been spent. She will be coming to the Council for more money.

There was a brief discussion about the sprinklers in the shelter and a suggestion to apply for an emergency CDBG (Community Development Block Grant) grant.

Ms. Carr said the Welfare law has not significantly changed since the 1800s.

There is no residency requirement for Welfare assistance.

Mayor Lovett suggested Council may want to develop a position and then request the Representatives to look into this.

Mayor Lovett asked if the Council wants to put this as an LSR (Legislative Service Request) for the upcoming fall. Yes.

Mayor Lovett asked if the Council wants Southwestern Community Services to make a presentation to the Council. Yes.

Mr. Koloski asked Mr. Morris to see if there are any CDBG grants available for funding the sprinklers.

Resolution 2020-17 State Route Re-Designation/Truck Route – Public Hearing (City Manager)

WHEREAS the City Council of the City of Claremont, New Hampshire, on February 8, 2006, by adoption of Resolution 2006-5, established a Municipal Transportation Improvement Capital Reserve Fund for the purpose of funding eligible local transportation projects as set forth in RSA 261:153, VI; and

WHEREAS there is a need for engineering services to re-designate the state truck route at a cost not to exceed \$18,538.24;

NOW THEREFORE BE IT RESOLVED by the City Council to raise, appropriate and expend the sum of up to \$18,538.24 with revenues to come from the Municipal Transportation Capital Reserve Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the Municipal Transportation Capital Reserve Fund; and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Nancy Merrill, Planning and Development Director, said there have been three public hearings on this and the desire is to move the truck route off Pleasant Street. This is a state designated truck route. NH Department of Transportation (NHDOT) has requested more information. The approximately \$18,000 would go toward looking at two other routes.

A motion was made by Ms. Kier and seconded by Mr. Koloski to adopt Resolution 2020-17 State Route Re-Designation/Truck Route.

Ms. Kier read the resolution into the record.

Mayor Lovett asked how much the City spent on the 2009 Truck Route Study. Ms. Merrill said it was funded by NHDOT and the City's match was time. Mayor Lovett asked why it hadn't moved forward. Ms. Merrill said everyone was concerned that there were no great options. At the time it rolled out, the country was in the middle of a recession. With work starting on Pleasant Street, the time is right for this. She said an engineer is looking at one route for northbound and another route for southbound traffic.

Ms. Sweetser asked if there would be more public sessions. Ms. Merrill said there would be two in March, one on the truck route and one on the whole conceptual plan.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Lovett - yes

Motion carried 8-0.

Connecticut River Conservancy Request Regarding Erosion (City Manager)

Proposed resolution:

"Whereas, the peaking operations of Wilder, Bellows Falls and Vernon dams have been causing daily fluctuations of, on average, 2-3 feet every day in the impoundments behind the dams for 70 years resulting in loss of land for landowners in VT and NH and degradation of water quality and habitat of the river for decades;

Whereas, in the late 1970s, during the last relicensing process, the Army Corps of Engineers (ACOE) conducted an erosion study on the project area; and FERC issued the last licenses in early 1979 just months before the ACOE completed their study in November of that year; and the ACOE study clearly states that pool level fluctuations are the second most important causative factor for erosion in the project areas.

Whereas, the erosion study completed for the current relicensing by Great River Hydro, the current owner of these three projects did not look at the effect of pool level changes on erosion, instead, focusing only on potential erosion due to velocity along the bank edge that would be typical for a natural river system; and the Connecticut River in the project area does not function as a natural river, instead functioning as a hybrid river with a series of impoundments controlled by the dams.

Whereas, many towns and landowners up and down the river have used billions of dollars in public and private money to attempt to stabilize and restore their streambanks to protect property and infrastructure over the past 70 years;

Therefore, be it resolved that the City of Claremont, formally requests that the Federal Energy Regulatory Commission require, via license article, the current and any subsequent owners of the Wilder, Bellows Falls and Vernon Dams to modify current dam operations to minimize peaking; provide for ongoing monitoring; develop a shoreline adaptive management plan; and commit funding for riverbank restoration and/or property owner compensation to reimburse towns and landowners for any and all damages resulting from the deterioration of the riverbank."

Gary Dickerman, Ward 1 resident and Conservation Commission (CC) Chair, said the CC voted to support this resolution. He said this falls under Chapter 7: Natural Resources of the Master Plan.

Kathy Urffer, River Steward, for Connecticut River Conservancy, said that she tracks relicensing of federal hydropower licenses. Most last 30-50 years. This relicensing started in 2012 and it includes five pretty large facilities, Wilder, Bellows Falls, Vernon, Northfield Mountain Pump Station, and the Turner Falls Dam, about a 200-mile area. About 22 towns are affected. The last time this was licensed was in 1979 and erosion was concern, but it has not been addressed. Some residents are losing land and it is usually farm land. If FERC (Federal Energy Regulatory Commission) does not hear objections from communities, they will issue the license, with no conditions.

After some discussion, Council decided to move this to another agenda and to include a public hearing.

A motion was made by Ms. Kier and seconded by Mr. Damren to put this on the first meeting in March as a resolution.

After discussion, **Ms. Kier withdrew her motion and Mr. Damren withdrew his second.**

A motion was made by Ms. Kier and seconded by Mr. Damren to put this on the March 25 agenda as a resolution to formally adopt the resolution and hold a public hearing.

Voice vote: motion carried 8-0.

Funds Transfer (City Manager)

Mr. Morris said this item came about because of the ratification of the Fire Union contract.

A motion was made by Mr. Damren and seconded by Ms. Matteau that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2020 City budget.

Transfer from:	01-417-630-0096	Payroll - Negotiations	\$13,978
Transfer to:	01-422-101-0000	Regular Pay	\$10,745
	01-422-135-0000	Retirement	\$ 3,233

Voice vote: motion carried 8-0.

Discussion of Process for Letters of Support from the Council (Council)

Mayor Lovett said this came about because of a letter of support for a hydroelectric facility. She drafted the letter, but didn't get it into the Council packet. So, she sent notice to the Council the day of the meeting and asked Councilors to sign the letter. Councilors were concerned because they felt they couldn't weigh in on it before it was written.

After discussion, it was agreed that if the Council gets a request for a letter of support, it will go on the next available agenda; Council will discuss; if Council wants to move forward with the letter of support, it is drafted in coordination with the City Administration.

Mr. O'Hearne asked that the Council get a view of the draft prior to it going into the Council packet. Mr. Koloski said he doesn't know if that's possible. He believes the City Manager and/or the Mayor are capable of writing a letter using the feedback from the Council at a meeting. There were no objections.

Discussion of Volunteer Recognition Process (Councilor Koloski/Mayor Lovett)

Mayor Lovett said the criteria Council gave was that the volunteer would have served at least 10 years. She asked for comments about how to improve the process.

- There should be an application.
- Councilors receive background information beforehand and a copy of the certificate
- Whoever initiates the request is responsible for the accuracy of the information
- Recognize no more than three individuals at the first meeting of the month
- This is a public process for people to come forward to nominate people who have gone above and beyond the normal
- Certificate of Appreciation is appropriate

Mr. Koloski made a suggestion for a future discussion to post a photo and the accomplishments of the volunteers along the walls of City Hall. Maybe change out yearly.

Ad Hoc Budget Council Sub-Committee (Councilor O'Hearne)

Mr. O'Hearne asked about having subcommittees for certain parts of the budget process (i.e. one group deal with Fire, Policy, and Public Works; another deal with City Hall and Parks & Recreation), so as not to be sitting in an all-day budget meeting.

Ms. Kier likes going through the whole budget in order to understand what's going on.

Mayor Lovett said other communities meet as a whole.

Mr. Morris said the budget is the most important policy the Council is responsible for. It is important for the whole Council to get the same information and to understand all of the budget.

Mr. Koloski said even if an ad hoc committee comes forward with recommendations, he will still have the same questions for the Department heads.

Mr. O'Hearne said it was just an idea, and asked to move on.

FUTURE AGENDA ITEMS AND DIRECTIVES

Ms. Kier brought up the Council Retreat.

Ms. Matteau wants to discuss minutes as an agenda item.

Mr. Koloski, regarding the Fee Schedule on the next agenda, he asked why Airport fees are not included. Mr. Morris said the Fire Chief will come to the Council to discuss that.

Mr. Koloski asked if the FBO (Fixed Base Operator) contract needs to come to the Council for signature.

Mr. Koloski said there is some activity going on at the train station; he wondered if the Ad Hoc Amtrak Platform Committee needs to be reactivated.

Mr. Koloski said when Guy Santagate was City Manager, there was discussion of a TIFD (Tax Incremental Finance District) on Charlestown Road, but it didn't go anywhere. With work happening out there, there may be a need to discuss drainage, sidewalks, etc.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

A motion was made by Mr. Damren and seconded by Ms. Kier to enter Nonpublic Session pursuant to RSA 91-A:3,II(a) – Personnel, and to invite Mr. Morris into the session.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Lovett - yes

Motion carried 8-0.

Entered nonpublic session at 8:45p.m.

A motion was made by Mr. O'Hearne and seconded by Ms. Matteau to exit the Non-Public Session.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Lovett - yes

Motion carried 8-0.

Public session reconvened at 9:42 p.m.

A motion was made by Ms. Kier and seconded by Mr. Damren to seal these minutes, because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Lovett - yes

Motion carried 8-0.

ADJOURNMENT

At 9:43 p.m., a motion was made by Mr. Damren and seconded by Ms. Matteau to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council